

Whereas (the Appellant) alleges and complains that in the giving of Judgment in a certain Suit, in Her Majesty's Court of Error and Appeal in Upper Canada, between (the Respondent) and (the Appellant) manifest error hath intervened, wherefore the said (Appellant) desires to appeal from the said Judgment to Her Majesty in Her Majesty's Privy Council; Now the condition of this obligation is such, that, if the said (Appellant) do and shall effectually prosecute such appeal and pay such costs and damages as shall be awarded, in case the Judgment aforesaid to be appealed from shall be affirmed, or in part affirmed, then this obligation shall be void, otherwise shall remain in full force.

That in every Case of Appeal to Her Majesty in Council, the obligors, parties to any bond as sureties, shall justify their sufficiency by Affidavit in the manner and to the same effect as is required by Rule number nine of this Court.

XXXIII.
Affidavit of
justification.

In cases appealed from either of the Courts of Common Law or from the Court of Chancery, the same fees and allowances shall be taxed in appeal by the Clerk of the Court of Error and Appeal for Attornies and Solicitors, or any Officer of the said Court as are allowed for similar services in the Court from which the appeal shall have been brought. And that Counsel's fees shall be taxed in the discretion of the Clerk, provided that no fee to Counsel exceeding Ten Pounds shall be taxed without an order of the Judge who presided in the argument or, in his absence, of the next Senior Judge.

XXXIV.
Fees taxable.

That the regular and appointed days or time of sitting of this Court shall be the second Thursday after the several terms of Hilary, Easter and Michaelmas, as appointed by the Statute twelfth Victoria, Chapter sixty-three, Section thirteen, at eleven o'clock in the forenoon; Provided, however, that the said Court may adjourn from time to time and meet at such other periods as shall be appointed for the hearing and disposing of any business brought before it.

XXXV.
Times of
sitting of the
Court.

The form of the Affidavit of Justification, referred to in the above Order 33rd, is as follows:—

In the (Style of Court).

A. B., Plaintiff, }
vs. E. F. of
C. D., Defendant, } and G. H. of

Form of Affidavit of Justification.

severally make Oath and say: and first this Deponent E. F. for himself saith that he is a resident inhabitant of